

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.

Respondents and Third-Party Complainants

v.

SAMSUNG ELECTRONICS COMPANY, LTD.

Third-Party Respondent

RESPONDENTS' OPPOSITION TO
SEA's MOTION TO SUPPLEMENT ITS PETITION FOR ATTORNEYS' FEES

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Table of Contents

I.	INTRODUCTION AND SUMMARY OF ARGUMENT	2
II.	ARGUMENT	2
	A. SEA Is Not Entitled To Supplement The Petition.....	2
	B. Rule 216 Does Not Support Allowing Supplementation Of The Petition	3
	C. The Supplemental Fees Claimed Are Excessive.....	4
III.	CONCLUSION.....	5

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Respondents Orient Overseas Container Line, Limited and OOCL (Europe) Ltd. (collectively "Respondents" or "OOCL") hereby oppose the motion ("Motion") of Complainant Samsung Electronics America, Inc. ("SEA") to supplement SEA's petition for an award of attorneys' fees ("Petition"). For the reasons set forth below, the Motion should be denied in its entirety.

I. INTRODUCTION AND SUMMARY OF ARGUMENT

SEA is not entitled to supplement its petition, which is not a pleading within the meaning of the Commission's regulations. Moreover, most or all of the "supplemental" information SEA seeks to submit was or should have been available when the Petition was originally filed. Finally, SEA's claim for attorneys' fees in connection with the preparation of the Petition is grossly excessive.

II. ARGUMENT

The Motion should be denied for the reasons set forth below.

A. SEA Is Not Entitled To Supplement The Petition

Although the Commission's regulations contemplate the supplementation of pleadings, the Petition is not a pleading subject to supplementation.

The first sentence of Rule 66 of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.66(a), states:

Amendments or supplements to any pleading (complaint, Order of Investigation and Hearing, counterclaim, crossclaim, third-party complaint, and answers thereto) will be permitted or rejected, either in the discretion of the Commission or presiding officer.

Petitions are not included in the list of pleadings that the regulation permits to be amended or supplemented. SEA's motion recognizes this, stating "To the extent that a Petition for Attorney Fees is considered a pleading...". Motion at 2. As the plain language of the applicable regulation demonstrates, a petition is not a pleading for these purposes. Accordingly, the discretion of the Presiding Officer to permit supplementation is not triggered, and the Motion should be denied.

B. Rule 216 Does Not Support Allowing Supplementation Of The Petition

While SEA correctly notes that 46 C.F.R. § 502.216 contemplates the possibility of supplementing the record in a proceeding, SEA's reliance on this regulation as a basis for supplementing the Petition is misplaced.

Rule 216 provides:

A motion to supplement the record, pursuant to § 502.69, should be filed if submission of evidence is desired after the parties' presentation in a proceeding, but before issuance by the presiding officer of an initial decision.

Generally, administrative law judges have permitted supplementation of the record in proceedings when good cause has been established. “Good cause” appears to have been interpreted as meaning that the new evidence is relevant, newly discovered, and not contested. *Hapag-Lloyd and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. §41102(c)*, 2022 WL 1239377 at *4 (ALJ April 22, 2022). Under this standard, SEA has failed to establish good cause because the evidence it now seeks to introduce is not newly discovered.

In this regard, the Petition was filed on January 26, 2026. The new evidence SEA seeks to introduce consists of invoices covering work performed in December of 2025 and January of 2026.¹ The fees for work performed in December of 2025 were or should have been known and available well before January 26, 2026, and should have been included in the original Petition. This is demonstrated by the fact that the invoice for the December, 2025 work is dated January 29,

¹ The invoice for January includes a time entry for January 28, 2026, which is after the filing of the Petition. At a minimum, SEA should be precluded from claiming fees for work on the Petition that was performed after the Petition was filed.

2026, only two days after the Petition was filed. This means the invoice was in nearly final form when the Petition was filed.²

Moreover, there is no reason that fees for most, if not all, of the work performed in January could not have been included in the January 26, 2026, Petition. Most law firm billing software permits generation of a report showing fees worked to date in any given month. An interim invoice showing fees through Friday, January 23, could have easily been generated and included in the Petition.

For the foregoing reasons, the fee information with which SEA now seeks to supplement the Petition is not newly discovered and good cause to permit supplementation does not exist.

C. The Supplemental Fees Claimed Are Excessive

Although the Commission has in the past awarded fees in connection with time spent on the preparation of a petition for an award of attorneys' fees, the fees for work on the Petition are excessive and those fees should not be awarded.

According to the Motion and materials submitted in support thereof, the fees associated with the preparation of the Petition total \$39,950.00. That is more than 25% of the total fees sought by SEA for all work on this matter and is greater than the fees for the substantive work associated with SEA's motion to dismiss OOCL's counterclaim (\$37,927.50) and SEA's reply to OOCL's appeal of the dismissal of the counterclaim (\$28,582.50). The expenditure of such an inordinate amount of time and fees on the preparation of the Petition itself is excessive, and such fees should not be awarded.

² The invoice for work performed in January of 2026 is dated February 11, 2026. This reinforces the ability of SEA counsel to process an invoice within less than two weeks of the end of a month, thereby making the failure to include the December, 2025 fees in the original Petition even more inexplicable.

III. CONCLUSION

For the foregoing reasons, the Motion should be denied and SEA should not be permitted to supplement its Petition.

Respectfully Submitted,

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Dated: March 9, 2026

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

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